

Individual Activity: IP Case Analysis and Personal Defense

Module 3 – Lesson 1: Intellectual Property

PART A – Identification and Classification

1. Trademark Infringement

It is considered trademark infringement because the name “StudySynq” and its logo are very similar to “StudySync.” This can mislead users because they might think the two are related, and damage the original company’s identity.

2. Trade Secret Theft

This situation is trade secret theft since the employee shared confidential pricing strategies. Trade secrets are valuable information that businesses keep private to maintain their advantage. Sharing it from people you are not supposed to share it with can cause serious issues.

3. Plagiarism

This is plagiarism because the student copied content without citing sources, which is unethical. It shows lack of originality, dishonesty and it violates academic rules.

4. Reverse Engineering

This is reverse engineering because the programmer studied the competitor’s software to recreate features. It involves disassembling and analyzing how a system works to build something similar.

5. Cybersquatting

This is cybersquatting because someone registered a domain similar to the company’s name and is selling it for profit. It takes advantage of the company’s brand to make money.

6. Open-Source Use

This is open-source use because the company plans to modify and use freely available code. This is allowed if they follow the rightful conditions.

PART B – Personal Judgment

1. The most harmful issue is trade secret theft. This is because it involves unauthorized sharing of confidential data that is critical to business success. Once certain information is released, competitors gain an unfair advantage, and the company may lose its position in the market.
2. The issue that is easiest to prevent is plagiarism. It can easily be avoided if they do not copy the exact same words written on someone else's work and claiming them as their own. Additionally, they only have to use proper citations. In short, students can avoid it by understanding academic rules and using references correctly.
3. The most common issue among students is plagiarism. Many students depend on online sources. Sometimes, they even copy the whole content of an article without realizing it is wrong to do so.

PART C – Local Application

1. Plagiarism: A university student downloads a full thesis from an online repository and submits parts of it as their own work without changing the content or giving credit.
2. Trade Secret: A worker from a lechon business reveals the special marinade ingredients and cooking process to a competing restaurant in the same town.
3. Trademark Problem: A small sari-sari store creates packaging and branding that closely imitates a popular instant coffee brand to make customers think it is original.
4. Cybersquatting: An individual registers a domain name similar to a well-known Filipino delivery service and demands payment before transferring ownership to the company.

PART D – Ethical Reflection

Reverse engineering is not always unethical because it depends on the intention and how it is used. In some cases, it is done to understand how a system works so that they can improve security.

However, reverse engineering becomes unethical when it is used to steal ideas, copy proprietary features, or gain unfair advantage over competitors. If a company recreates a product too closely without permission, it may violate intellectual property rights.

In conclusion, reverse engineering can be both ethical and unethical, depending on how you use the information you gained.

PART E – In-Class Recall Check

- Reverse engineering is taking something apart to understand how it works and recreating an improved version of it.
- Trade secrets are business information that is generally unknown to the public.
- Copyright infringement i